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IN THE SUPREME COURT

IN THE STATE OF NORTH DAKOTA

State of North Dakota

Appellee,

v.

Clifford Smith

Appellant.

Appeal from the District Court
South Central Judicial District
Oliver County, North Dakota
The Honorable Donald L. Jorgensen

SUPREME COURT NO. 20050004
OLIVER COUNTY NO. 04-K-1025

****

BRIEF OF APPELLANT

****

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TABLE OF CONTENTS

PARAGRAPH NO.

TABLE OF AUTHORITIES 1

STATEMENT OF THE ISSUE 2

STATEMENT OF THE CASE 3

STATEMENT OF FACTS 10

STANDARD OF REVIEW 12

LAW AND ARGUMENT 14

ISSUE: **Whether the Court erred in imposing the 90-day imprisonment penalty of N.D.C.C. § 39-08-01.2 to Smith who was convicted of N.D.C.C. § 39-08-01 as a first offender, a class B misdemeanor, which is punishable by a maximum penalty of up to 30 days imprisonment, a fine of $1,000.00, or both, based upon Smith's admission that he caused serious bodily injury to another person during the offense.**

CONCLUSION AND PRAYER FOR RELIEF 24

CERTIFICATE OF SERVICE 26

1. TABLE OF AUTHORITIES:

CASES: **PARAGRAPH NO.:**

NORTH DAKOTA CASES:

City of Bismarck v. Fettig, 1999 ND 193, 601 N.W.2d 247, ¶ 19 . . . . . 20, 22

DeCoteau v. State, 504 N.W.2d 552, 556 (N.D.1993) 18

Keepseagle v. Backes, 454 N.W.2d 312, 315 (N.D.1990) 13

Phipps v. North Dakota Dept. of Transp., 2002 ND 112, 646 N.W.2d 704 13

State v. Higgins, 2004 ND 115, 680 N.W.2d 645 17

State v. Johnson, 1997 ND 235, ¶ 10, 571 N.W.2d 372, 375 18

State v. Nace, 371 N.W.2d 120 (N.D.1985) 18

State v. Rohrich, 450 N.W.2d 774 (N.D.1990) 17, 18

State v. Wika, 1998 ND 33, 574 N.W.2d 831 . . . . . 17, 18

NORTH DAKOTA CENTURY CODE:

N.D.C.C. § 12.1-01-04 . . . . . 4, 7, 8, 13

N.D.C.C. § 12.1-32-01 . . . . . 16, 21, 22, 23

N.D.C.C. § 12.1-32-01(6) 15, 19

N.D.C.C. § 12.1-32-06.1 18

N.D.C.C. § 39-08-01 . . . . . 2, 4, 6, 7, 8, 13, 14, 15, 16, 19, 21, 23, 25

N.D.C.C. § 39-08-01(2) 15

N.D.C.C. § 39-08-01.2 . . . . . 2, 6, 13, 14, 16, 19, 21, 22, 25

N.D.C.C. § 39-08-01.2(1)(c) 5, 6

N.D.C.C. § 39-08-01.4 21

OTHER AUTHORITIES:

Rule 43, N.D.R.Cr.P. 11

S.L. 1987, ch. 460, § 8 21

2. STATEMENT OF THE ISSUE

ISSUE: **Whether the Court erred in imposing the 90-day imprisonment penalty of N.D.C.C. § 39-08-01.2 to Smith who was convicted of N.D.C.C. § 39-08-01 as a first offender, a class B misdemeanor, which is punishable by a maximum penalty of up to 30 days imprisonment, a fine of $1,000.00, or both, based upon Smith's admission that he caused serious bodily injury to another person during the offense.**

3. STATEMENT OF THE CASE

Nature of the Case.

4. This is an appeal of the criminal judgment of December 20, 2004, wherein Smith entered into a conditional plea agreement to the charge of Driving Under the Influence of Alcohol, in violation of N.D.C.C. § 39-08-01, and causing serious bodily injury, as defined in N.D.C.C. § 12.1-01-04, to another person, sentencing him to a period of 90 days in jail at the Mercer County Jail, a fine in the amount of $250.00, mandatory court fees in the amount of $250.00, and ordering him to complete an alcohol evaluation. (App. pp. 13-24).

Course of Proceedings/Disposition of the Court Below.

5. On August 15, 2004, Smith was charged by North Dakota Uniform Complaint with the alleged crime of "Drove Under the Influence of an Alcoholic Beverage and/or had an AC of at least 0.08-Involved Crash Resulting in Serious Bodily Injury (1st offense)." The Complaint further alleged that the offense was a violation of N.D.C.C. § 39-08-01.2(1)(c).

6. Smith filed a motion with the Court to strike the language, "0.08-Involved Crash Resulting in Serious Bodily Injury (1st offense)" and "N.D.C.C. § 39-08-01.2(1)(c)" from the Complaint and to further hold that the 90 day imprisonment penalty of N.D.C.C. § 39-08-01.2 did not apply to a first offense of N.D.C.C. § 39-08-01. (App. pp. 31-37). The State timely responded (App. pp. 27-30), and on November 9, 2004, the Court denied Smith's motion in its entirety (App. pp. 25-26).

7. Smith then entered into a conditional plea agreement to the charge of Driving Under the

Influence of Alcohol, in violation of N.D.C.C. § 39-08-01, and causing serious bodily injury, as defined in N.D.C.C. § 12.1-01-04, to another person, sentencing him to 90 days in jail wherein 85 days was to be served on electronic monitoring, with mandatory fines and fees of $500.00, and a mandatory alcohol evaluation, but this was rejected by the Court on December 2, 2004. (App. pp. 20-24). The Court further ordered that the parties had until December 20, 2004 to present any proposed disposition. (App. p. 19).

8. Smith then entered into a second conditional plea agreement to the charge of Driving Under the Influence of Alcohol, in violation of N.D.C.C. § 39-08-01, and causing serious bodily injury, as defined in N.D.C.C. § 12.1-01-04, to another person, sentencing him to 90 days in jail with possible work release, with mandatory fines and fees of $500.00, and a mandatory alcohol evaluation. This plea agreement also contained an attached letter from Smith's brother, Locke Smith, who had been injured and was the victim of the offense, and which was requested by the Court for any new proposed plea agreement. The Court accepted this plea agreement on December 20, 2004. (App. pp. 13-18).

9. Smith filed his Notice of Appeal (App. pp. 11-12) and an Application for Stay of Execution of Judgement and Release Pending Appeal on December 20, 2004 (App. pp. 3-7). The State timely responded to the Application (App. pp. 8-10) and the Court granted the Application on December 27, 2004 (App. p. 7).

10. STATEMENT OF FACTS

11. In the Rule 43, N.D.R.Cr.P., plea agreement accepted by the Court, Smith admitted that on or about August 15, 2004, in Oliver County, North Dakota, he operated a motor vehicle under the influence of alcohol and rolled his Pontiac Grand Am, and in doing so, caused his brother, Locke Smith, to suffer serious bodily injury when he was knocked unconscious and

hospitalized. (App. p. 16).

12. STANDARD OF REVIEW

13. The facts in this case are undisputed, and the only issue is the interpretation and application of N.D.C.C. § 39-08-01, N.D.C.C. § 39-08-01.2, and N.D.C.C. § 12.1-01-04, in conjunction with applicable facts at hand. Accordingly, "[T]he interpretation of a statute is a question of law, fully reviewable" on appeal. *Phipps v. North Dakota Dept. of Transp.*, 2002 ND 112, 646 N.W.2d 704, citing *Keepseagle v. Backes,* 454 N.W.2d 312, 315 (N.D.1990).

14. LAW AND ARGUMENT

ISSUE: **Whether the Court erred in imposing the 90-day imprisonment penalty of N.D.C.C. § 39-08-01.2 to Smith who was convicted of N.D.C.C. § 39-08-01 as a first offender, a class B misdemeanor, which is punishable by a maximum penalty of up to 30 days imprisonment, a fine of $1,000.00, or both, based upon Smith's admission that he caused serious bodily injury to another person during the offense.**

Criminal statutes are to be strictly construed in favor of the Defendant and against the government.

15. N.D.C.C. § 39-08-01, which prohibits the operation of a motor vehicle while under the influence of intoxicating liquor or drugs, classifies the offense as a class B misdemeanor for the first or second conviction of that section in a five-year period. N.D.C.C. § 39-08-01(2). Class B misdemeanors are punishable by a "maximum penalty" of up to 30 days imprisonment, a fine of $1,000.00, or both. N.D.C.C. § 12.1-32-01(6).

16. In cases in which a person has violated N.D.C.C. § 39-08-01 and the violation caused serious bodily injury, N.D.C.C. § 39-08-01.2 requires that the court sentence the offender to at least

90 days imprisonment[1]. This term of imprisonment exceeds the maximum term of imprisonment for a class B misdemeanor. Thus there would appear to be a conflict between N.D.C.C. § 39-08-01 (and by implication N.D.C.C. § 12.1-32-01) and N.D.C.C. § 39-08-01.2.

17. "Criminal statutes are strictly construed in favor of the defendant and against the government." *State v. Higgins*, 2004 ND 115, 680 N.W.2d 645. "Thus, in interpreting penal statutes, [this Court] resolve[s] any doubt in favor of the criminal defendant." *State v. Rohrich*, 450 N.W.2d 774 (N.D.1990). Generally, trial courts have significant discretion in criminal sentencing. *State v. Wika*, 1998 ND 33, 574 N.W.2d 831. However, the trial court must act within statutory limits. *Id.* (emphasis added). A sentence in excess of a statutory provision or contrary to a statutory provision is an illegal sentence. *Id.* (emphasis added).

18. Moreover, while the holding of *State v. Nace*, 371 N.W.2d 120 (N.D.1985) has been superceded in part by legislation, see N.D.C.C. § 12.1-32-06.1, its holding permitting a challenge to an illegal sentence is still sound. *See Wika, supra*, and *DeCoteau v. State*, 504 N.W.2d 552, 556 (N.D.1993); and *State v. Johnson,* 1997 ND 235, ¶ 10, 571 N.W.2d 372, 375. In *Nace, supra*, this Court concluded that, "to infer that a court could extend probation beyond such a maximum permitted punishment would lead to unacceptable results." Likewise, it would also be an unacceptable result to extend a sentence of incarceration beyond the maximum permitted punishment. *Also see State v. Rohrich, supra*, where this Court concluded the same results regarding probation before the statutory change took effect.

19. An Attorney General's opinion dealt with this statutory conflict in Opinion No. 92-18. The

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[1]A limited exception exists for defendants who were under eighteen years of age at the time the offense occurred.

Attorney General opined that a court must impose the 90-day imprisonment penalty of N.D.C.C. § 39-08-01.2 upon a person convicted of N.D.C.C. § 39-08-01 as a first offense. This was based upon the general rule of construction that a particular provision controls over a general. However, this statutory interpretation failed to consider this Court's directive that a trial court must act within statutory limits. Those limitations are that the classification is a class B misdemeanor pursuant to N.D.C.C. § 39-08-01, and as mandated by N.D.C.C. § 12.1-32-01(6), class B misdemeanors are punishable by a "maximum penalty" of up to 30 days imprisonment, a fine of $1,000.00, or both.

The latest enactment controls.

20. Moreover, the Attorney General Opinion failed to consider an important rule of statutory construction which applies when statutes squarely contradict each other. This rule of construction states that, "if an irreconcilable conflict exists, the latest enactment will control or will be regarded as an exception to or as a qualification of the other." *See City of Bismarck v. Fettig*, 1999 ND 193, 601 N.W.2d 247, ¶ 19.

21. In this case, N.D.C.C. § 39-08-01.2 was last updated in 1987. See S.L. 1987, ch. 460, § 8. However, but for 1995, the more general statute controlling this case has been updated every legislative session since 1987. See Source at N.D.C.C. § 39-08-01. Moreover, N.D.C.C. § 12.1-32-01, which classifies class B misdemeanors as punishable by a "maximum penalty of up to thirty days' imprisonment, a fine of one thousand dollars, or both", was even updated in 1997, and certainly subsequent to the 1987 enactment of N.D.C.C. § 39-08-01.2. Had the legislature been concerned about first time DUI offenders having the mandatory 90 day sentence, they could have easily clarified that such facts changed the penalty from a class B misdemeanor to something else, as they did in N.D.C.C. § 39-08-01.4 ("it is a class A

misdemeanor...to violate section 39-08-01 if the violation occurred while a minor was accompanying the individual in a motor vehicle." They chose not to.

22. Attorney General's opinions are not binding on this Court. *Fettig, supra*, at ¶ 17 (emphasis added). While they are entitled to respect if they are persuasive, *Id*., the analysis in this particular case demonstrates that the legislature has never categorized a first time DUI causing serious bodily injury as anything other than a class B misdemeanor. More importantly, despite the special punishment section of N.D.C.C. § 39-08-01.2 being passed in 1983 and amended in 1987, the legislature has still never categorized the penalty for a first time DUI causing serious bodily injury as anything other than a class B misdemeanor, nor did they draw any distinction when they updated N.D.C.C. § 12.1-32-01 in 1997.

23. Thus, this Court should resolve any doubt in favor of Smith when interpreting these penal statutes, and further, Smith's sentence should also be controlled by the latest legislative enactments, those being both N.D.C.C. § 39-08-01 and N.D.C.C. § 12.1-32-01, and therefore, to sentence Smith beyond 30 days would be an illegal sentence and beyond the maximum term for which he might have been imprisoned.

24. CONCLUSION AND PRAYER FOR RELIEF

25. WHEREFORE, the Appellant, Clifford Smith, respectfully requests this Court to reverse the sentence for error in imposing the 90-day imprisonment penalty of N.D.C.C. § 39-08-01.2 to Smith who was convicted of N.D.C.C. § 39-08-01 as a first offender, a class B misdemeanor.

Dated this 14th day of February, 2005.

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26. CERTIFICATE OF SERVICE

A true and correct copy of the foregoing document was sent by e-mail on this 14th day of February, 2005, upon:

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_____
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